

Fly GACA — IP Complaint and Takedown Procedure

SECTION 02-legal TYPE legal STATUS **draft** OWNER Founder UPDATED 2026-06-14

Document: [ip-and-takedown-procedure-draft-2026-06-14.md](#) **Version:** Draft 1.0 — 2026-06-14
Status: DRAFT — requires review by a qualified Saudi-licensed lawyer before use. **Purpose:** Sets out the procedure for receiving, assessing, and acting on intellectual property complaints and takedown requests in relation to content on the Fly GACA platform. **Contact:** legal@flygaca.com

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This document is a working draft prepared by an AI assistant. It is NOT legal advice. It must be reviewed by a Saudi-licensed lawyer before publication or operational use.

Key review points: (1) Whether KSA law (Copyright Law 2022, Royal Decree M/41, 1443H; the KSA E-Commerce Law) provides a safe harbour or limitation of liability for a platform that acts expeditiously on takedown notices — counsel should advise whether a KSA analogue to the US DMCA safe harbour exists and, if so, the exact conditions required; (2) The GACA corpus rights question (see Lawyer Brief — Corpus Rights) directly affects this procedure — counsel should advise whether this procedure adequately addresses the risk of GACA itself being a complainant; (3) Whether the counter-notice mechanism is appropriate under KSA law; (4) Whether the process must be published in Arabic to be enforceable.

1. Purpose and Scope

This Intellectual Property Complaint and Takedown Procedure ("Procedure") sets out how Fly GACA receives, evaluates, and responds to:

- (a) **IP Complaints** — claims that content on the Fly GACA platform infringes the intellectual property rights (including copyright, trade marks, or design rights) of a third party; and
- (b) **Other Content Complaints** — claims that content on the platform is unlawful, defamatory, or otherwise harmful.

This Procedure applies to all content on the Fly GACA website, PWA, Android application, and Academy Dashboard, including:

- Library content (regulatory documents, study notes, guides)
- Captain Adel AI-generated outputs

- User-generated content (if any)
- Platform design and software

This Procedure does **not** apply to privacy or personal data complaints — for those, see our [Privacy Notice](#) and the data rights request process at privacy@flygaca.com.

2. Our Content Principles

Fly GACA is an educational reference platform. Its primary content is:

(a) **Official GACA publications** — regulatory texts, AIPs, directives, and forms published by the General Authority of Civil Aviation. The extent to which Fly GACA may lawfully host, reproduce, or index such material is the subject of an outstanding legal opinion. Pending that opinion, Fly GACA adopts a precautionary position and will act promptly on any complaint by GACA regarding its own published material.

(b) **Original Fly GACA content** — study guides, summaries, course materials, and software created by Fly GACA. This content is protected by copyright owned by Fly GACA.

(c) **Captain Adel AI outputs** — AI-generated study responses. These are generated from training data and real-time retrieval. We take responsibility for ensuring Captain Adel is not configured to reproduce copyrighted third-party material in bulk.

(d) **User-submitted content** — where applicable (e.g., user forum posts, notes). Users warrant on submission that their content does not infringe third-party rights.

3. How to Submit an IP Complaint

3.1 Complaint Submission Channel

All IP complaints must be submitted in writing to:

Email: legal@flygaca.com

Subject line: IP COMPLAINT — [brief description]

We do not accept IP complaints by phone. Written complaints are required to create a record.

3.2 Required Information

To enable us to assess your complaint, you must provide:

#	Required Element
1	Your full legal name, organisation (if applicable), and contact details (email address, phone number, address)
2	A description of the intellectual property right you claim to own or are authorised to represent (e.g., copyright in a specific work; trade mark registration number and class)

#	Required Element
3	Identification of the specific content on the Fly GACA platform that you allege infringes your rights — include the URL(s) and/or a description sufficient to locate the content
4	A statement that you have a good-faith belief that the use of the content is not authorised by the rights owner, its agent, or applicable law
5	A statement that the information in your complaint is accurate and that, under penalty of applicable law, you are the rights owner or are authorised to act on behalf of the rights owner
6	Your signature (electronic signature accepted)
7	If you are acting as an authorised representative, evidence of your authority to act

Complaints that do not contain all required elements will be returned for completion. We cannot act on anonymous complaints.

3.3 GACA and Government Authority Complaints

Complaints from the General Authority of Civil Aviation (GACA) or any Saudi government authority will be treated as urgent and will be reviewed by the founder within 24 hours of receipt. Fly GACA will work cooperatively with GACA to resolve any complaint relating to use of GACA's published material.

4. Assessment and Response Process

Stage 1 — Acknowledgement (within 2 business days)

We will acknowledge receipt of a complete complaint within 2 business days. If the complaint is incomplete, we will notify you of the missing information.

Stage 2 — Initial Assessment (within 5 business days)

We will assess the complaint to determine:

- Whether the complaint identifies specific content on the platform
- Whether the claimant has provided credible evidence of an ownership interest
- Whether the claim appears, on its face, to raise a legitimate IP concern

We may contact you for clarification during this stage.

Stage 3 — Decision and Action (within 10 business days of receiving a complete complaint)

Based on our assessment, we will take one of the following actions:

Decision	Action
Content removed	The identified content is removed or access-restricted pending further review. You and the content contributor (if applicable) are notified.

Decision	Action
Content modified	If removal is disproportionate, the content is modified to address the specific concern.
No action	If the complaint is clearly unfounded (e.g., the content is independently created, the right claimed does not exist, or a valid exception or licence applies), we decline to act and explain our reasoning.
Dispute referred	If the claim raises a genuinely contested legal question (e.g., fair use / educational exception), we may seek legal advice before deciding. In this case, we will inform you and may temporarily restrict access to the content pending advice.

5. Counter-Notice Procedure

If content you created or submitted is removed following an IP complaint, you may submit a counter-notice if you believe the removal was in error.

5.1 How to Submit a Counter-Notice

Send your counter-notice to legal@flygaca.com with the subject line: COUNTER-NOTICE — [brief description]

Your counter-notice must include:

1. Your full legal name and contact details
2. Identification of the content that was removed and its previous location
3. A statement, under penalty of applicable law, that you have a good-faith belief that the content was removed as a result of mistake or misidentification
4. Your consent to the jurisdiction of the competent courts of the Kingdom of Saudi Arabia for resolution of the dispute
5. Your signature (electronic accepted)

5.2 Process Following Counter-Notice

We will forward your counter-notice to the original complainant and, absent legal proceedings, we may restore the content within **10–14 business days** of the counter-notice, at our discretion. If the original complainant initiates legal proceedings, the content will remain removed pending the outcome.

6. Repeat Infringers

Fly GACA maintains a record of IP complaints. In appropriate circumstances, we may:

- Suspend or terminate accounts of users who are the subject of multiple substantiated IP complaints

- Implement measures to prevent re-upload of removed content

7. Trade Mark Complaints

If you believe that content on the Fly GACA platform infringes your registered or unregistered trade mark rights (including by creating confusion as to the source, sponsorship, or endorsement of goods or services), you may submit a complaint through the process in Section 3.

In assessing trade mark complaints, we will consider whether the use is:

- Descriptive (referring to the mark as the name of a regulatory authority or set of regulations)
- Nominative (referring to the mark to identify the owner's products or standards)
- Likely to cause genuine confusion as to source or endorsement

Note regarding "GACA": Fly GACA uses the word "GACA" descriptively throughout the platform to refer to the General Authority of Civil Aviation and its published regulations. This use is accompanied by a prominent disclaimer of any affiliation with GACA. The platform's legal name and trade mark position is the subject of a pending legal opinion (Lawyer Brief — Name Opinion — 02-legal/lawyer-brief-name-opinion-2026-06-14.md).

8. Content Accuracy Complaints

If you believe that content on the platform contains factual errors relating to official GACA regulations or other official material, this is an operational concern rather than an IP matter. Please report it to support@flygaca.com. We take accuracy concerns seriously given the safety-adjacent nature of aviation regulatory information.

9. Contact Summary

Purpose	Contact
IP complaints and takedown requests	legal@flygaca.com
Counter-notices	legal@flygaca.com
Data / privacy complaints	privacy@flygaca.com
Content accuracy reports	support@flygaca.com

We aim to respond to all IP complaints within the timelines in Section 4. If you have not received a response within 10 business days, please follow up at legal@flygaca.com.

DRAFT 1.0 — 2026-06-14. Not published. Pending Saudi legal counsel review. Note to founder: This procedure is deliberately precautionary regarding GACA-published material (Section 3.3 and Stage 3 "Dispute referred"). Until the corpus rights legal opinion is received (Lawyer Brief — Corpus Rights), we should be prepared to act quickly on any complaint from GACA itself.

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